

The question then is whether a triable issue of fact exists that Defendant permitted Mr. Payan to drive the vehicle. The legal question is not whether Plaintiff permitted some other third party to drive the vehicle who, in turn and without Defendant's authorization, permitted another third person to drive the vehicle. Plaintiff has cited no authority, nor is the Court aware of any such authority, which imposes liability under a negligent entrustment theory in those circumstances.

Rather, the jury instruction is clear – Defendant must have known the driver (in this case Mr. Payan) was unfit to drive. The fact Plaintiff may have authorized Mr. Contreras to operate the vehicle and that he permitted Mr. Payan to operate the vehicle is not relevant, unless there was evidence that Defendant informed Mr. Contreras that Mr. Payan was authorized to operate the vehicle. All that is relevant is whether Plaintiff authorized Mr. Payan to operate the vehicle.

Defendants declaration states she did not know who Mr. Payan was or that he existed until after the accident. Contrary to Plaintiff's position, this establishes Defendant's initial burden on summary judgment with respect to this element. Further, Plaintiff provides no evidence contradicting the fact that Defendant did not know of Mr. Payan's existence until after the accident. Consequently, no triable issue of fact exists with respect to element nos. 3 and 4 of CACI 724.

Defendant shall prepare a form of order consistent with this ruling within 2 weeks. The Case Management Conference is continued to June 17, 2026 at 10:30am for status of judgment.

5. 25CV01142 Kremer, Peter et al. v. Yvette B Bocast, Trustee of the Desley C Cowan Trust et al.

EVENT: Motion to Compel Responses to Discovery and Motion to Deem Requests for Admissions Admitted

In light of the stipulation and order, the motion is moot.

6. 25CV03377 Li, Yi v. Crew Enterprises, LLC et al.

EVENT: Plaintiff's Motion to File a Third Amended Complaint

Plaintiff's Motion to File a Third Amended Complaint is GRANTED. The Proposed Third Amended Complaint attached to the motion is deemed filed. However, no further amendments will be permitted until Defendants have had an opportunity to demurrer to the pleading, which they are statutorily entitled to do.

Previously, we granted Defendant's motion to set aside the default. As part of that order, we required Defendants to file their demurrer within 10 days of that 4/22 ruling. Defendants complied, and filed a demurrer on 4/28 which set a hearing date for June 17. However, several days before the demurrer was filed, Plaintiff filed this motion for leave to file a third amended complaint.

As a result, the pleading has become a moving target in this case. In light of the Court's ruling granting the motion to file a Third Amended Complaint, the demurrer to the Second Amended Complaint scheduled for June 17, 2026 at 9:00am is vacated as moot. Defendants may file a responsive pleading to the Third Amended Complaint within the timeframe prescribed by the Code of Civil Procedure. Again, the Court emphasizes no further amendments will be permitted until Defendants have filed a responsive pleading, and if that responsive pleading is a demurrer, no further motions to amend will be considered until the hearing on the demurrer has concluded.

The Court will prepare the order.

7. 25CV03743 Iorg, Aria v. Deus Lux, Inc

EVENT: Petition for Approval of Minor's Compromise

Petition for Approval of Minor's Compromise is GRANTED. The Court will sign the proposed orders.